

**IN THE SUPREME COURT OF
BANGLADESH
HIGH COURT DIVISION
(CRIMINAL REVISIONAL JURISDICTION)**

Present:

Mr. Justice Md. Shohrwardi

Criminal Revision No. 1524 of 2015

Md. Abu Syeed Sheikh

.....convict petitioner

-Vs-

The State and another

.....opposite parties.

Mr. F.M. Mizanur Rahman, Advocate

.... For the convict petitioner

Mr. Mostafa Golam Kibria, Advocate

.....For the opposite party

No.2

Mr. S.M. Golam Mostofa Tara, DAG with

Mr. A. Monnan, AAG

..... for the opposite parties

Heard on. 15.11.2023, 28.11.2023

Judgment on 06.12.2023

On an application under section 439 read with section 435 of the Code of Criminal Procedure, 1898 the Rule was issued calling upon the opposite parties to show cause as to why the impugned judgment and order of conviction and sentence dated 23.07.2015 passed by the Additional Metropolitan Sessions Judge, Khulna in Criminal Appeal No. 103 of 2013 affirming the judgment and order of conviction and sentence dated 11.03.2013 passed by the Joint Sessions Judge, Court No.1, Khulna in Session Case No. 225 of 2010 convicting the petitioner under section 138 of the Negotiable Instrument Act, 1881 and sentencing him thereunder to suffer simple imprisonment for a period of 1(one) year and to pay a fine of Tk. 6,50,000/-(six lakh and fifty thousand) should not be set aside and/or

pass such other order or further order or orders as to this Court may seem fit and proper.

The prosecution case, in short, is that the informant and the accused petitioner are full brothers. The complainant is a businessman and the accused Abu Sayed Sheikh took loan of Tk. 6,50,000 from the complainant. When the complainant demanded to the accused to pay the loan, the accused issued cheque No. 0201963 on 7.01.2009 drawn on his Account No. 1532 maintained with the City Bank Ltd, Khulna Branch. The complainant presented the said cheque on 11.01.2009 for encashment through Agrani Bank Ltd, Farazipara Branch, Khulna and the cheque was dishonour on 13.9.2009. After that, he issued a legal notice on 22.01.2009 through registered post with AD upon the accused which was received by the accused on 01.02.2009 but the accused did not pay the cheque amount. Consequently, he filed the case on 3.03.2009.

After filing the complaint petition, the complainant was examined under section 200 of the Code of Criminal Procedure, 1898 and the learned Magistrate was pleased to take cognizance of the offence against the accused under section 138 of the Negotiable Instrument Act, 1881. Thereafter, the case record was sent to the Sessions Judge, Khulna for trial which was registered as Session Case No. 225 of 2010. Thereafter, the case was transferred to the Joint Sessions Judge, Court No.1, Khulna for trial.

During trial, charge was framed under Section 138 of the Negotiable Instruments Act, 1881 against the accused which was read over and explained to the accused and he pleaded not guilty to the charge. Prosecution examined 02 witnesses to prove the charge against the accused. After examination of the prosecution witnesses, the accused was examined under section 342 of the Code of Criminal Procedure, 1898 and the accused declined to examine any DW. After concluding trial, the trial court by judgment and order dated 11.3.2013 convicted the accused and sentenced

him as stated above against which he filed Criminal Appeal No. 103 of 2013 before the Metropolitan Sessions Judge, Khulna. On transfer, the Additional Metropolitan Sessions Judge, Khulna heard the appeal and affirmed the judgment and order passed by the trial court against which he filed the instant appeal.

P.W. 1 Md. Rezaul Karim Sheikh is the complainant. He stated that accused issued a cheque on 7.01.2009 in his favour which was dishonoured on 13.01.2009. After that, he served legal notice on 21.01.2009 and the accused received the said notice on 01.02.2009 but he did not pay the cheque amount. Consequently, he filed the case. He proved the complaint petition and his signature as exhibit-1 series, the dishonoured cheque as exhibit-2, the dishonored slip as exhibit-3, the deposit slip as exhibit-4, postal receipt as exhibit-5, acknowledgement receipt as exhibit-6 and the legal notice as exhibit-7. During cross-examination, he admitted that the accused is his full brother and his father died about 7/8 years ago. Before issuance of the cheque, the accused and his brother used to do the business. He used to live in Dhaka and the accused used to live at Batiaghata.

P.W. 2 Md. Sabbir Uddin is the Officer of Agrani Bank Ltd, Farazipara Branch. He stated that the disputed cheque was presented through City Bank for encashment which was dishonored due to closing of the account. During cross-examination, he stated that the date i.e. '7.9.2009' was not overwritten. Subsequently he stated that there is some over writing. The figure 5 has been overwritten. There are 04 (four) kinds of handwriting on the cheque. It is not a matter to be seen by the bank. The bank only examined the signature.

The learned Advocate Mr. F.M. Mizanur Rahman appearing on behalf of the petitioner submits that the accused petitioner and the complainant are full brothers and there is a fiduciary relation between them who at the relevant time used to deal with the same business and the

accused is elder brother of the complainant who bonafide kept the cheque in the joint custody of both brothers and subsequently, the complainant used the old cheque and filed the complaint petition. Having drawn attention to the disputed cheque (exhibit-2) the learned Advocate submits that there is a overwriting on the date of issuance of the cheque and the complainant subsequently filed the complaint petition putting a post date.

The learned Advocate Mr. Mostafa Golam Kabir appearing along with learned Advocate Mr. Sheikh Khairul Alam on behalf of the complainant opposite party No. 2 submits that the accused issued the cheque for amount of Tk. 6,50,000. But the cheque was dishonoured on the ground that the account has already been closed. He also submits that if the cheque is dishonoured for any ground it will attract the offence under section 138 of the Negotiable Instrument Act, 1881 and despite the notice served upon the accused under section 138 of the Negotiable Instrument Act, 1881 he did not pay the cheque amount and after complying with all the procedure provided in section 138 of the said Act the complainant filed the case and the prosecution proved the charge against the accused beyond all reasonable doubt.

I have considered the submission of the learned Advocate Mr. F.M. Mizanur Rahman who appeared on behalf of the convict petitioner and the learned Advocate Mr. Mostafa Golam Kabir who appeared on behalf of opposite party No. 2, perused the evidence, the impugned judgment and order passed by the trial court and the records.

On perusal of the disputed cheque (exhibit-2), it appears that there is four types of handwriting on the cheque. Full name of accused is written on the cheque and the signature (full name) Md. Abu Syeed Sheikh on the cheque (exhibit-2) is not identical to the handwriting on the cheque. By overwriting the year on the cheque, the date of issuance of the cheque has been changed and no initial was given by the drawer of the cheque.

Therefore, I am of the view that the payee by tempering the date on the disputed cheque (exhibit-2) changed the issuance of the date on the cheque.

Under section 138 of the Negotiable Instrument Act, 1881 a cheque issued by the drawer is required to be presented within 06 (six) months from the date of issuance of the cheque but the complainant by tempering the date on the cheque, changed the dated of issuance of cheque. Overwriting on the disputed cheque (exhibit-2) is also admitted by P.W. 2. Both the courts below did not consider the evidence of P.W. 2 as regards tempering the date of issuance of the cheque and failed to arrive at a conclusion that there is a tempering on the disputed cheque (exhibit-2). On a bare examination of the disputed cheque (exhibit-2) it appears that tempering the date on the cheque (exhibit-2) is apparent on the face of the record. Therefore, I am of the view that the disputed cheque was presented beyond the 6 (six) months from the date of issuance of the cheque. The prosecution failed to prove the charge against the accused Md. Abu Syeed Sheikh under section 138 of the Negotiable Instrument Act, 1881.

I find merit in the Rule.

Accordingly, the Rule is made absolute.

The impugned judgment and order passed by the trial court is hereby set aside.

The convict petitioner is entitled to get back 50% of the cheque amount deposited before filing the appeal.

Send down the lower Court's records at once.